

24STCV03940 24STCV03940

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-09-04

Motion: PLAINTIFFS DAVID T. RANGEL AND EVANGELINA P. RANGEL'S MOTION TO COMPEL THE DEPOSITION OF DEFENDANTS JUAN RANGEL AND ALICE RANGEL

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Case Number: 24STCV03940 Hearing Date: September 4, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DAVID

T. RANGEL, an individual; EVANGELINA P. RANGEL an individual,

Plaintiffs,

vs.

JUAN RANGEL, an individual; ALICE RANGEL, an individual,
and DOES 1-50, Inclusive,

Defendants

AND RELATED CROSS-ACTION.

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CASE NO.: 24STCV03940

[TENTATIVE] ORDER RE: PLAINTIFFS DAVID

T. RANGEL AND EVANGELINA P. RANGEL'S MOTION TO COMPEL THE DEPOSITION OF DEFENDANTS
JUAN RANGEL AND ALICE RANGEL

Dept. 733

8:30 a.m.

September 4, 2026

I.

INTRODUCTION

On February 16,
2024, Plaintiffs David T. Rangel ("David") and Evangelina P. Rangel
("Evangelina") ("Plaintiffs") filed a complaint against Defendants Juan Rangel
("Juan") and Alice Rangel ("Alice") ("Defendants"), alleging causes of action
for (1) Breach of Contract, (2) Quiet Title, (3) Partition, and (4) Unjust
Enrichment.

The complaint
alleges the following. The subject of this action is a piece of real property
comprising a multi3 family residence located within the County of Los Angeles
and commonly known as 1267 4 West Adams Blvd., Los Angeles, CA 90007

(hereinafter the "Property"). (Compl., ¶ 7.) In early 2020, Juan approached Plaintiffs about buying out their full ownership share in the Property. At this time, the Plaintiffs' ownership share in the Property was 62.5% and the Defendants' ownership share in the Property was 37.5%. The Property has been appraised in excess of 1.4 9 million dollars. (Id. ¶ 8.)

On March 13, 2020, Plaintiffs and Juan entered into a California Standard Promissory Note ("Note") with respect to the sale and transference of Plaintiff's full ownership rights in the property. (Id. ¶ 9, Ex. 1.) Following execution of the Note, Plaintiffs executed a California "Grant Deed" which, when recorded, would transfer their full share of the interest in the Property to Defendants as joint tenants. A copy of this Grant Deed was delivered to Defendants to be held in trust until payment on the Note was made in full. (Id. ¶ 10, Ex. 2.)

Pursuant to the terms set forth in the Note, Juan was obligated to pay Plaintiffs a total of \$350,000.00 no later than November 13, 2020 (eight 20 months from the date of signature) in exchange for their full ownership interest in the Property. (Id. ¶ 11.) While Juan, made the agreed upon initial down payment of \$50,000.00, Juan is now in default and owes approximately \$281,878.00 under the Note. (Id. ¶ 10.) Juan also improperly recorded the Note. (Id. ¶ 13.)

On April 15, 2025, Defendants filed a cross-complaint, alleging causes of action for (1) Quiet Title – Adverse Possession and (2) Declaratory Relief.

On March 10, 2026, Plaintiffs filed the instant motion to compel the deposition of Defendants.

No opposition has been filed.

II. LEGAL STANDARD

Any party may obtain discovery, subject to restrictions, by taking the oral deposition of any

person, including any party to the action. (Code Civ. Proc., § 2025.010.) A properly served deposition notice is effective to require a party or party-affiliated deponent to attend and to testify, as well as to produce documents for inspection and copying. (Code Civ. Proc., § 2025.280, subd. (a).)

California Code

of Civil Procedure section 2025.450, subdivision (a) provides: "If, after service of a deposition notice, a party to the action . . . , without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document . . . described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document . . . described in the deposition notice."

California Code

of Civil Procedure section 2025.450, subdivision (b) provides: "A motion under subdivision (a) shall comply with both of the following:

The motion

shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

The motion

shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance."

III.

DISCUSSION

Plaintiffs seek

for the Court to compel the depositions of Defendants.

Plaintiffs

provide the following. After preliminary meet and confer efforts regarding

taking Defendants' depositions, wherein Defendants' counsel stated that Defendants "undergoing medical treatment" and would not be available for deposition until after January 2026, Plaintiffs' counsel on January 7, 2026 served a Notice for taking Defendants' depositions on February 2, 2026. (Blum Decl., ¶¶ 3-5.) For over three weeks, Defendants' counsel failed to respond, and Plaintiffs' counsel followed up asking for confirmation for the depositions. (Id. ¶ 6, Ex. 1.) Defendants' counsel responded that he suffered a medical emergency and would need to reschedule, providing alternative dates for February 9, 12, 18, and 20, 2026. (Ibid.)

On

February 2, 2026, Plaintiffs' counsel served an amended notice for the taking of Defendants' depositions for February 18, 2026. (Id. ¶ 7.) On February 11 and 13, 2026, Plaintiffs' counsel followed up to confirm whether Defendants will appear. (Id. ¶ 8.) Defendants' counsel responded that Defendants needed to reschedule due to a new medical condition and would not be available until March 30, 2026. (Id. ¶ 9.) Plaintiffs' counsel provided March 6, 9, 10, 11, and 13, 2026 as alternative dates. (Id. ¶ 10.) Defendants' counsel did not respond. (Ibid.)

On

February 25, 2026, Plaintiffs' counsel reached out again for Defendants' counsel to provide alternative dates for the depositions, and Defendants again failed to respond. (Id. ¶¶ 11-12.)

As of the date of the filing of the instant motion, trial was scheduled for July 22, 2026.

Given

Defendants' dilatory conduct in appearing for their depositions and Defendants' counsel's continued silence, the Court finds compelling the depositions to be proper.

Plaintiffs' motion is granted.

Sanctions

California Code of

Civil Procedure section 2025.450, subdivision (c) provides, "(1) If a motion under subdivision (a) is granted, the court shall impose a monetary sanction . . . in favor of the party who noticed the deposition and against the deponent or

the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

The Court finds
that sanctions against Defendants to be appropriate, as Defendants and their counsel have not acted with substantial justification in refusing to meaningfully participate in the meet and confer process prior to this motion being filed.

Plaintiffs'
counsel declares that his hourly rate is \$550.00 and he has spent (5) hours drafting the motion and anticipates spending one (1) hour for preparing for and attending the hearing. (Blum Decl., ¶ 13.) The time spent on the instant motion is excessive, given the lack of complexity with the issues involved. The Court will award a total of two (2) hours in connection with the instant motion. This totals \$1,100.00.

IV.

CONCLUSION

Based on the
foregoing, Plaintiffs' motion to compel the deposition of Defendants is GRANTED. The Court orders Defendants' depositions to be conducted within the next forty-five (45) days. The parties are ordered to meet and confer regarding where, when, and how the depositions are to be conducted.

Plaintiffs' request for sanctions is GRANTED
in the total amount of \$1,100.00 against Defendants and Defendants' counsel, jointly and severally. Sanctions are payable within 30 days of this order

Dated this 4th day of September
2026

Hon. Gary D.
Roberts

Judge of the
Superior Court